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Preventing Terrorism and Cyberterrorism within a National Security Strategy

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Abstract

Background: The prevention of terrorism and cyberterrorism increasingly depends on the coordination of security institutions, intelligence capabilities and digital resilience. Global interdependence and the use of cyberspace complicate the distinction between internal and external threats, while predictive technologies raise questions about legality, evidence and accountability.

Purpose: This article examines how a National Security Strategy can integrate the prevention of terrorism and cyberterrorism while preserving the rule of law and fundamental rights. It argues that effective prevention requires institutional coordination without collapsing the distinct functions of intelligence, cybersecurity, national defence, criminal investigation and judicial review.

Methodology: The article adopts a legal-dogmatic and interdisciplinary approach. It analyses the Portuguese constitutional and statutory framework, relevant national and European strategic instruments, and selected scholarship in security studies, intelligence studies and crime prevention. The analysis distinguishes threat, risk, intelligence and evidence and assesses preventive measures against legal basis, institutional competence, evidential status, necessity, proportionality and accountability.

Findings and implications: Intelligence-led policing, predictive analytics and artificial intelligence can improve early warning and prioritisation, but their outputs remain probabilistic and cannot independently establish criminal responsibility or justify coercive measures. The article proposes a boundary-oriented model in which information-sharing and operational cooperation are paired with clear mandates, meaningful human oversight, data-protection safeguards and reviewable decisions. It concludes that a coherent national-security strategy should connect internal security, defence, intelligence and cybersecurity while preserving their legal and institutional distinctions. This approach can strengthen preparedness in strategic planning and operational practice without turning preventive security into indiscriminate surveillance or treating algorithmic assessments as evidence.

Keywords: Terrorism, Cyberterrorism, National Security, Prevention; Intelligence, Cybersecurity, Fundamental Rights, Artificial Intelligence

1. Introduction

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The prevention of terrorism and cyberterrorism poses a rule-of-law challenge involving legal, institutional, technological and strategic dimensions. Globalization, infrastructure interdependence and digitalization have blurred the distinction between internal and external threats. In cyberspace, actors can operate across borders and produce effects in several States without physical movement.

The article asks how a National Security Strategy can organize the prevention of terrorism and cyberterrorism without compromising the rule of law. It argues for coordination among intelligence, internal security, cybersecurity, national defence, criminal investigation and international partners, while preserving their distinct mandates. Information-sharing and predictive tools may improve early warning, but probabilistic outputs are not evidence and cannot replace legal authority, human judgement or review.

Methodologically, the article adopts a legal-dogmatic and interdisciplinary approach, analysing Portuguese constitutional and statutory rules, relevant national and European strategic instruments, and selected scholarship in security, intelligence and crime-prevention studies. Sources were purposively selected for their relevance to the institutional architecture and legal limits of prevention; this is neither a systematic literature review nor an empirical evaluation of operational effectiveness. The analysis assesses preventive capabilities by operational relevance, legal basis, institutional competence, evidential status, proportionality and accountability. It is limited to Portugal, using European and comparative material where directly relevant.

The article's contribution is to formulate a boundary-oriented model for preventive security: cooperation and information-sharing should be strengthened, but intelligence, criminal investigation, cybersecurity, cyber-defence and judicial decision-making must retain distinct mandates and evidential standards. The model evaluates preventive capabilities through six connected questions: operational relevance, legal basis, institutional competence, evidential status, proportionality and accountability. The article first examines Portugal's security architecture, then analyses terrorism, cyberterrorism and preventive technologies, and finally identifies the legal safeguards required for rights-compatible prevention.

1.1 National Security Strategy And The Security Architecture

1.1.1 Constitutional and Legal Framework

The Portuguese Constitution (CRP) defines, among the State's fundamental tasks, the safeguarding of national independence, the protection of fundamental rights and guarantees, and respect for the principles of the democratic rule of law.[34] At the same time, it should be recalled that, following Max Weber's sociological definition, the State is a

[34] CRP, art.9.

human community that successfully claims, within a given territory, the monopoly of the legitimate use of physical force.[35]

Likewise, the State is responsible for guaranteeing the rights to liberty and security, which are, broadly speaking, safeguarded by the police pursuant to Article 272 of the CRP, particularly with regard to upholding democratic legality and guaranteeing internal security and citizens' rights.[36] The police function is also expressed through police measures and crime prevention, both of which are grounded in the principles of legality and proportionality.[37]

The Constitution does not itself define the structure of the police in the broad sense; this structure is established by legislation governing the organisation of the Security Forces (SF), which falls within the exclusive legislative competence of the Assembly of the Republic.[38]

The Internal Security Law (ISL), approved by Law No. 53/2008 of 29 August, establishes the structure and functions of Portugal's Internal Security System (ISS). It defines internal security as State activity to guarantee public order, security and tranquility; protect persons and property; prevent and suppress crime; and support democratic institutions, fundamental rights and democratic legality. The law also makes clear that internal-security activity must comply with the Constitution and legislation and that police measures must be necessary, adequate and proportionate. Against this legal background, it is important to recall that, over the last two decades, and particularly since the end of the Cold War, security studies have been enriched by research into the social processes contributing to the construction of new security objects, including the nature of threats, the social construction of the idea of the enemy, feelings of insecurity, and the perception of risk and vulnerability.[39] Likewise, the contemporary globalised world presents security threats characterised by their transnational nature, reflecting the fact that no State can address them alone and that no State is immune to the risks to which they relate, together with an increasing reliance on international agencies and bilateral mechanisms and potentially greater coordination capacity.[40]

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[35] Lourenço & Costa (2018, p. 35).

[36] CRP, art. 27.

[37] CRP, art. 272.

[38] CRP, art. 272.

[39] Law No. 53/2008, of August 29 (Internal Security Law), in its current wording.

[40] No. 1 and 3 of article 1 of the LSI.

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Recent geopolitical tensions, including Russia-NATO confrontation and renewed strategic competition, contribute to an uncertain security environment. Such developments matter to national planning, but should be assessed alongside transnational terrorism, cyber threats and domestic vulnerabilities rather than treated as a substitute for risk analysis.[41]

The foregoing calls for a broader theorization of national security.

Realist approaches traditionally define national security through territorial integrity, sovereignty and protection against external threats, while assigning internal security a role in maintaining public order and protecting institutions. Contemporary interdependence makes this division incomplete: cyber operations, transnational networks and critical-infrastructure dependencies can produce effects across both domains. A national-security strategy should therefore integrate these dimensions without erasing their distinct legal mandates. National security can be analysed through distinct but connected functions: national defence and military security; intelligence concerning threats to State interests; internal security and law enforcement; and human security, including civil protection and the protection of people. These functions overlap in practice but remain subject to different legal mandates and accountability mechanisms. An integrated strategy should coordinate them without merging their competences. Beck's account of the "risk society" helps explain how technological, environmental and transnational risks cross borders and expose local vulnerabilities. This perspective supports a multidimensional approach to national security rather than a narrow focus on military threats.[42]

In 2013, the Strategic Concept of National Defence (SCND) was approved. It defined "the fundamental aspects of the overall strategy to be adopted by the State for the achievement of the objectives of national security and defence policy".[43] The SCND refers expressly to the concept of national security, although the previous 2003 SCND had already addressed it, albeit less explicitly. The current SCND approaches the ISL as an integral part of a broader and more comprehensive National Security system, advocating cooperation between the Armed Forces (AF) and the Security Forces and Services (SFS) in combating transnational threats. In this respect, it is important to emphasise that the SCND is provided for in Article 7 of Law No. 31-A/2009 of 7 July and that, under paragraph 1 of that provision, it defines "the State's priorities in the field of defence, according to the national interest" and forms an integral part of national defence policy. Accordingly, it concerns State priorities in the field of defence rather than the domain of internal security.

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[41] Lourenço & Costa (2018, p. 80).

[42] Lourenço & Costa (2018, p. 80).

[43] Lourenço & Costa (2018, p. 28).

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Several European states, including Spain, France and the United Kingdom, have adopted national-security strategies that coordinate public institutions and, where relevant, private actors. These examples provide comparative context for considering an integrated Portuguese framework. There is therefore a case for developing a National Security Strategy that encompasses internal security and national defence, while remaining aligned with the applicable European security strategy. Moreover, any such strategy must respond to contemporary challenges, which are constantly changing. For the purposes of this article, the expression "National Security Strategy" is used as a proposed integrating strategic framework rather than as a claim that Portugal currently possesses a single comprehensive statutory strategy bearing that exact institutional status. The argument is therefore normative and architectural: it concerns how the relevant security, defence, intelligence and cybersecurity instruments could be coordinated within a coherent strategic framework, while remaining subject to the competences and legal limits established by the Constitution and ordinary legislation. Automated analysis of biographical, image, voice and other identifying data can assist counter-terrorism work where information volumes exceed manual capacity. Its use nevertheless requires a lawful purpose, reliable provenance, access controls and safeguards against unjustified interference with rights. Automation may improve the processing of large datasets, but it does not remove the need for human assessment, necessity and proportionality. Analytical outputs should inform, not independently determine, preventive or coercive decisions. Any national strategy concerning internal security should therefore incorporate and remain coherent with relevant European and national strategies. In particular, it should be consistent with the European Union Internal Security Strategy, the EU strategy for the eradication of trafficking in human beings, the EU drugs strategy, the EU cybersecurity strategy, and the EU strategy for combating terrorist radicalization and recruitment.[44]

1.1.2. Internal Security and External Security

Within the Portuguese Internal Security System (ISS), internal security encompasses "three guarantees – public order, security and tranquility –, two protections – persons and property –, one preventive function – crime prevention – and three contributions – the normal functioning of democratic institutions, the regular exercise of citizens fundamental rights, freedoms and guarantees, and respect for democratic legality".[45]

Accordingly, security-policy planning pursues three fundamental objectives: "(1) first, preventing symmetrical and asymmetrical risks from materializing; then, (2) protecting people, democratic institutions, critical infrastructures and security services and forces; and, finally, (3) containing the impacts and/or effects of a catastrophic event, managing its

[44] Council of Ministers Resolution No. 19/2013.

[45] Graça (2017, p. 112); Carvalho (2015, p. 112).

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consequences, restoring order and law, and facilitating the return to the conditions of normality that existed before the crisis".[46]

Security is a broad public function whose boundaries with defence and justice must be clearly defined. Coordination is necessary, but institutional roles and legal powers must remain distinct.[47] During a lawfully declared state of emergency, the Armed Forces may support civilian authorities within the constitutional and statutory framework. Such involvement should remain limited to the authorized purpose and duration of the emergency.[48] The traditional Westphalian distinction treated borders as separating internal from external security. Global interdependence has weakened the explanatory value of geography alone, as threats and their effects increasingly cross-national boundaries.[49] Internal and external security are now mutually dependent: globalization externalizes domestic problems and internalizes external ones. Security analysis must therefore consider cross-border causes, actors and consequences.[50] Brandão identifies three dynamics linking the two dimensions: the internalization of externally generated phenomena, the externalization of domestic phenomena, and the growth of transboundary threats.[51]

Internal security can no longer be understood simply as a domestic version of external security. Their relationship is more complex and reflects interdependence across national and international settings.[52] Under the CRP, a distinction exists between National Defence (ND) and Internal Security (IS), corresponding to the classical distinction of modern States "which, since the fragmentation of the empires of Central Europe (…) continues to inform even the most scholastic conception of security strategies: in the face of external threats, taking territorial borders as the term or limit, ND falls essentially to the Armed Forces; in relation to threats within those borders, maintaining IS falls to the police forces".[53] The Armed Forces' primary mission remains national defence, but transnational and hybrid threats can require structured cooperation with civilian security institutions. Such cooperation must rest on constitutional and statutory authority, defined command arrangements and clear limits on the functions performed by each body. Integration should

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[46] Almeida (2013, p. 7). Nogueira (2012)

[47] Almeida (2013, p. 8).

[48] Almeida (2013, p. 8).

[49] Guedes (2015a).

[50] Graça (2017, p. 19); Collins (2016, p. 2); Collins (2007, p. 2)

[51] Brandão (2015, p. 5-6); Brandão (2014, p. 5-6).

[52] Guedes (2015b).

[53] Serviço de Informações de Segurança (2019, p. 4-5).

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improve preparedness and exchange information, not blur the distinction between military defence, police powers and intelligence activity.

In this context, particular importance should be attached to the protocol signed on 28 February 2020 containing the Guidelines for Operational Coordination between the Armed Forces and the Security Forces and Services.[54] The protocol seeks to establish, at operational level, how cooperation between these State entities is to be implemented in matters of internal security. Its adoption reflects the necessary adaptation of these institutions to new threats, including terrorism, organized crime, cyber threats, cyberterrorism and protection-and-rescue operations.

The historical distinction between internal and external security has become less clear because threats, institutions and non-state actors operate across both domains. This development supports an integrated national-security perspective while preserving legal distinctions between institutional mandates.[55] Finally, attention should be drawn to the need for and relevance of creating a Strategic Concept of Internal Security (SCIS), which should strategically develop "side by side" with the SCND. Several proposals have already been formulated. The SCIS has been presented as an "essential component in defining the architecture of a National Security System that integrates, through a logic of complementarity, the systems of military security, internal security, intelligence and civil protection, without neglecting other important political, economic and social factors that contribute to achieving national-security strategic objectives".[56] The proposed security architecture is based on a coherent and coordinated Internal Security System, with complementary roles for public institutions and relevant private actors. Coordination should support shared situational awareness and resource prioritisation while preserving the accountability and competence of each participating institution.

Proposals for reform have included stronger political coordination, clearer operational command arrangements and a coordination centre to reduce friction between actors, standardize procedures and support joint operations. Any such model must remain consistent with statutory competences and accountability.[57]

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[54] Sistema de Segurança Interna (2020a). Orientações para a articulação operacional entre as Forças Armadas e as Forças e Serviços de Segurança.

[55] Collins (2016, p. 3); Collins (2007, p. 3)

[56] Moleirinho (2009, p. 280).

[57] Lourenço et al. (2015, p. 83-84).

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Territorial responsibility should remain the organising principle for ordinary police functions, supplemented by nationwide capabilities where legislation or operational needs require them.[58]

1.1.3. The New Security Paradigm

The contemporary national-security paradigm combines policy coordination, legal measures and international cooperation. It reflects the fact that domestic security decisions may affect regional and global peace and security.

Its development may therefore be structured around four pillars that reinforce the notion of National Security: "National Defence and the Armed Forces; Internal Security and the Police Forces; State Security and the Intelligence Services; Community Security and Civil Protection".[59] Beck's "risk society" highlights how technological and urban development coexist with complex risks that cross political, economic and social boundaries. Security analysis must therefore account for multidimensional vulnerabilities rather than military threats alone.[60] Contemporary risks are networked, adaptable and capable of affecting individual well-being and security at local, national and international levels.[61]

States consequently need responses that are dynamic, coordinated, integrated and multidisciplinary.[62]

Security policy now extends beyond military threats to include crises such as natural disasters, pandemics and food insecurity, whose effects may undermine social resilience.[63]

Portugal's position at the European Union's external border gives internal-security policy a clear European dimension. National measures must therefore align with EU cooperation in the Area of Freedom, Security and Justice and with relevant common strategies, while reflecting Portugal's own constitutional allocation of responsibilities. This reinforces the case for a national-security framework that connects internal security, defence, intelligence and cybersecurity, rather than treating them as isolated policy fields. Portugal's EU membership means that national security choices also affect European cooperation and shared security objectives.

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[58] Lourenço et al. (2015, p. 86).

[59] Gouveia (2018, p. 367).

[60] Beck (2009, p. 19).

[61] Elias (2011, p. 147).

[62] Sousa (2008).

[63] Buzan (2007, p. 24)

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Several states have adopted cross-government national security strategies that coordinate public institutions and, where appropriate, private actors. Such examples offer comparative context, but the Portuguese model must be designed around its own constitutional allocation of powers and statutory institutions.

Conceptual confusion between security and defence can obstruct cooperation and encourage institutional competition, weakening responses to transnational threats.[64] National security is best understood as an integrated framework connecting the institutions, powers and instruments that protect the State and society.[65] A "system of systems" approach coordinates different instruments of State power and analyses the causes, purposes and dynamics of threats before selecting responses.[66] Such a strategy should be structural in nature and make the Portuguese ISS better able to address present and future challenges. Its principal lines of action should include the following. The proposed framework would connect four principal pillars: State security and intelligence; civil protection and human security; internal security and criminal investigation in cooperation with judicial authorities; and national defence, including legally authorized subsidiary support.[67] The pillars should have distinct functions: defence addresses military security, intelligence supports State security, civil protection covers emergencies and human security, and internal security is primarily delivered by the competent security forces and services. Coordination should occur at governmental level without erasing these distinctions.[68]

A National Security Strategy should guide policies across diplomatic, intelligence, military, internal-security, economic and cultural domains, including the protection of national cohesion and identity.[69] Alongside defence, internal security, foreign policy and intelligence, relevant areas include civil protection, food and maritime security, cybersecurity, public health and cooperation with private actors and civil society.[70] The Strategic Reflection Group on Security proposed a National Security Law and a Superior Council for National Security to coordinate implementation, crisis monitoring and strategic planning.[71]

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[64] Silva & Ribeiro (2018, p. 149).

[65] Gouveia (2018, p. 365).

[66] Lourenço et al. (2015, p. 60-61).

[67] Lourenço et al. (2015, p. 60-61).

[68] Moleirinho (2009, p. 279)

[69] Lourenço et al. (2015, p. 64).

[70] Lourenço et al. (2015, p. 66).

[71] Lourenço & Costa (2018); Lourenço et al. (2015).

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The proposal combines a National Security Strategy, a National Security Law, a Superior Council and a consultative council.[72] The proposal responds to the multidimensional nature of contemporary societal change and security risks. Current threats involve diverse state and non-state actors, asymmetric methods and new technological capabilities, especially in cyberspace. Hybrid campaigns may combine informational, economic, energy, technological and political instruments to exploit vulnerabilities and weaken institutions. Although conventional military action remains relevant, security environments increasingly include drones, cyberattacks, special forces and remote capabilities. Non-state actors may also use asymmetric violence that disregards humanitarian norms. At domestic level, relevant concerns include jihadist terrorism, transnational organized crime, violence and potential social instability, particularly in metropolitan areas. The broadened concept of security places individuals and societal, political and economic conditions alongside the State, while recognising that many contemporary threats originate abroad without amounting to armed conflict. The GRES study favors a coordinated "system of systems", with autonomous but interdependent strategic concepts guided by complementarity and subsidiarity, and prevention policies that address both insecurity and its public perception.[73]

2. Prevention Of Terrorism And Cyberterrorism Within A National Security Strategy

2.1. Contextual Analysis

The geopolitical scenario is increasingly uncertain and complex, making it possible to identify "multiple and different global threats which, directly and/or indirectly, affect Portugal and Portuguese interests abroad, (…) [in particular] the terrorist threat of Islamist origin".[74]

Globalization has made terrorism more transnational, although its organisation, targets and operational reach may remain local or regional. Definitions vary, but recurring features include politically motivated violence, attacks on civilians or non-combatants, and the pursuit of ideological or religious objectives.[75]

Benjamin Netanyahu similarly stated that "terrorism has been defined, with more or fewer elements, as a set of attacks against indiscriminate targets, civilians and 'non-combatants', with an underlying political motivation, whether ideological or religious".[76]

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[72] Lourenço & Costa (2018, p. 73).

[73] Lourenço et al. (2015, p. 86).

[74] Internal Security System (SSI). (2020b). Annual Internal Security Report (RASI 2019), p. 78.

[75] Varino (2012, p. 15).

[76] Bravo (2010, p. 6).

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Intensive media coverage can amplify public fear and place terrorism at the centre of security-oriented political discourse. Policy should respond to genuine threats without allowing sensational coverage or public anxiety alone to determine exceptional measures.[77]

Alongside terrorism, hybrid threats are another category that must be considered in everyday security because of their increasing presence and complexity. The European Centre of Excellence for Countering Hybrid Threats describes hybrid threats as coordinated combinations of state and non-state activity, conventional and unconventional methods, and military and non-military instruments. They may exploit legal, political, economic, informational and technological vulnerabilities while remaining below the threshold of open armed conflict. Their prevention requires cross-sectoral assessment and cooperation, but responses must remain proportionate and grounded in reliable attribution. Hybrid threats combine conventional and unconventional, military and non-military instruments, often using cyber operations, information campaigns and economic or political pressure to achieve strategic objectives.[78] The COVID-19 pandemic exposed how information and disinformation operations can exploit institutional pressure, weaken public confidence and distort government decision-making.[79] Terrorism can exploit the openness and trust that sustain democratic societies. This insight matters for prevention because excessive or indiscriminate security measures may undermine social cohesion and public confidence themselves. Counter-terrorism policy should therefore combine the protection of potential targets with careful differentiation between lawful conduct, indicators of risk and evidence of criminal activity.

The Paris and Copenhagen Schools offer critical perspectives on how security institutions define threats and justify preventive action. The Paris School examines security routines and technologies in everyday governance; the Copenhagen School analyses how issues are framed as existential threats. Both underline that threat definition and response are political and institutional choices requiring scrutiny. Contemporary security therefore includes economic, environmental and societal dimensions in addition to political and military security.

2.2. Terrorism

Contrary to a widespread perception, terrorism should not simply be regarded as a global phenomenon. It may instead be understood as a limited and circumscribed phenomenon and as an instrument used by a political, state or clandestine organisation to pursue political objectives in a regional or local context.

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[77] Martinho (2018, p. 117).

[78] Pereira (2018, p. 11).

[79] Internal Security System (SSI). (2021). Annual Internal Security Report (RASI 2020), p. 102.

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For analytical and legal purposes, cyberterrorism should be distinguished from cybercrime, hacktivism, cyber espionage and state-sponsored cyber operations, even where methods or infrastructure overlap. The use of digital tools, the disruption of a network or the political character of an online act is not, by itself, sufficient to establish a terrorist offence. Classification requires assessment of conduct, intent, target, consequences and applicable statutory elements. This distinction matters operationally: threat intelligence may justify further assessment or protective action, but coercive measures and criminal attribution require an adequate legal basis and evidence appropriate to the decision being taken.[80]

2.3. Intelligence in the Prevention of Terrorism and Cyberterrorism

Terrorism is one of the principal threats to the security of States and citizens. The struggle takes place on several fronts: combating ideology, dismantling support structures for terrorist groups and, equally importantly, disrupting the financial flows that sustain terrorist activities.

2.3.1. Intelligence and the Cyber Domain

Information is a vital resource for modern States, and intelligence increasingly contributes to information superiority through an improved understanding of the cyber domain. Such superiority may translate into decision-making advantages and strategic and tactical benefits. It depends, among other factors, on cyber power, the scale and complexity of attacks, the robustness of defence, policy positions, systemic vulnerabilities and dependencies, and the anonymity and attribution problems associated with cyber actors.

2.3.2. Intelligence, Investigation and Institutional Coordination

The proactive nature of cyberterrorism prevention makes intelligence production and early warning particularly relevant. This prospective dimension does not, however, confer exclusive preventive responsibility on intelligence services. Prevention and response depend on coordination among competent authorities within their respective legal mandates.

2.4. Strategies for the Technological and Operational Prevention of Terrorism

Pedro Clemente describes security as a "national endeavor" and identifies fragmentation between internal security, civil protection, national defence and intelligence as a challenge to an integrated system.[81]

Likewise, the omnipresence of digital communication media, the proliferation of such devices and their use by individuals and criminal organisations require a paradigm shift and adjustments to police processes and procedures.[82] This new security environment therefore

[80] Plotnek and Slay (2021) & Freitas (2022) & Law No. 52/2003

[81] Clemente (2006, p. 34).

[82] Lourenço & Costa (2018, p. 153).

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requires the security forces to adapt to big data, predictive policing and smart policing, bringing police activity into the digital domain and taking advantage of artificial intelligence while safeguarding individual rights.[83]

This new paradigm and the corresponding prevention strategies are considered below. It arises in a context in which the community-policing model appears to have lost prominence, giving way to information-guided, geographically informed patrol and the pursuit of operational objectives.[84]

2.4.1. Framework

This model is internationally known as intelligence-led policing, that is, policing guided by intelligence.[85] It has emerged as a model of police action in which intelligence products direct patrol efforts in order to deter disorder and incivilities.[86] Intelligence-led policing incorporates a criminal-analysis dimension[87], in which tactical analysis identifies crime patterns, locations with higher incidence and preferred times for criminal activity.[88] Strategic criminal analysis, based on reported-crime indicators, can consequently identify a general pattern of offending or a pattern of offences affecting particular victims, thereby supporting the formulation of preventive crime programs.[89]

Another policing model is problem-oriented policing. Although this model is not particularly suited to dealing with terrorism or cyberterrorism, it was proposed by Herman Goldstein in 1979 and defines strategies and programmes for reducing crime, emerging as a response to growing criticism of traditional community or proximity policing.[90] It treats crime control as the study of problems leading to corrective and successful enforcement strategies, with analysis, study and evaluation at the centre of problem-oriented policing and with a requirement to assess each new problem and develop a tailored response.[91]

2.4.2. Predictive Policing

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[83] Lourenço & Costa (2018, p. 153).

[84] Clemente (2006, p. 35).

[85] Almeida (2013, pp. 7-8); Elias (2011, p. 158).

[86] Clemente (2006, p. 50).

[87] Clemente (2010, p. 419).

[88] Clemente (2006, p. 50).

[89] Clemente (2006, p. 50).

[90] Carvalho (2015, p. 157).

[91] Peterson (2005, p. 10).

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Police intelligence developed from practices associated with diplomacy, warfare and the prevention of threats to political authority. These traditions continue to shape modern intelligence collection and assessment.[92]

Predictive policing applies analytical techniques to estimate where crime may occur, or which people may be at risk of victimization or offending. Its use must respect equality and non-discrimination and avoid treating statistical likelihood as proof of individual conduct.[93] Big-data analysis seeks patterns across large datasets but may also enable extensive observation and the classification of individuals for preventive or enforcement purposes.[94] Information overload can hinder analysis; data-mining techniques may help identify relevant patterns and support decisions, but their outputs depend on data quality and interpretation.[95] Algorithmic forecasting may assist anticipation, yet data mining and predictive analysis can interfere with privacy and therefore require legal limits and safeguards.[96] Predictive tools may identify crime hotspots and support operational decisions, but their apparent precision should not obscure uncertainty, data limitations or the governance consequences of digital surveillance.[97] Predictive models infer probabilities from historical data. They may support tactical decisions, while strategic security intelligence remains subject to the legally defined remit of intelligence services.[98] Intelligence services and criminal-investigation bodies may need to cooperate, particularly where an emerging threat develops into a suspected offence. Their purposes and legal powers nevertheless remain distinct: intelligence supports anticipation and strategic assessment, whereas criminal investigation seeks to establish facts and obtain admissible evidence under procedural safeguards. Cooperation should define the lawful basis for information exchange, the conditions for onward use and the responsibility for each subsequent decision. Predictive policing typically involves collecting data, generating a prediction and using it to inform police strategy or tactics. Its intended benefit is more effective resource allocation, not the replacement of evidence or lawful decision-making.[99]

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[92] Brito (2008, pp. 155-197).

[93] Brayne et al. (2015).

[94] Neiva (2019).

[95] Colombo & Neto (2017, pp. 63, 77). Chen et al. (2003, p. 1)

[96] Colombo & Neto (2017, p. 77).

[97] Aradau & Blanke (2017, p. 373).

[98] Carvalho (2015, p. 169). Moleirinho (2009, p. 256). L'Heuillet (2004, p. 256-257).

[99] Brantingham (2018, p. 473)

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New technologies applied to established policing doctrines can threaten individual rights and must be assessed accordingly.[100]

2.4.3. Intelligence-led Policing

Intelligence-led policing emerged in the United Kingdom in the early 1990s, directing police resources through the collection and analysis of criminal intelligence to identify persistent unlawful activity.[101] Its core practices include prioritizing significant incidents, focusing on persistent offending, managing sources and surveillance lawfully, and placing intelligence at the centre of operational decisions.[102] Intelligence-led policing can use AI-supported analysis, but police intelligence and national-security intelligence remain institutionally and legally distinct. Criminal-investigation bodies may develop prospective assessments only within their own powers.[103] Ratcliffe's model treats intelligence-led policing as an organisational philosophy aimed at reducing crime and disrupting offenders, supported by strategic leadership and objective allocation of resources.[104] Analysis of the criminal environment helps decision-makers select strategic, operational and tactical responses. For terrorism prevention, it should support both early intervention and an effective response while remaining tied to lawful purposes.[105] Ratcliffe describes intelligence-led policing as an ongoing interaction between intelligence, decision-makers and the criminal environment, supported by specialist analytical expertise.[106] Police intelligence can support early warning, incident management and prevention, rather than relying only on reactive enforcement. Its value depends on sound interpretation, accountable decisions and assessment of effects.[107] Forensic intelligence integrates and cross-references evidence such as DNA, fingerprints, ballistics and trace material to identify patterns and links that may inform investigations and resource allocation.[108]

The analysis of evidence from improvised explosive devices illustrates the value of information sharing across agencies and countries, allowing investigators to identify links

[100] Barrett (2017, p. 327).

[101] Carvalho (2015, p. 122). Newman (2008, p. 70).

[102] Carvalho (2015, p. 122-123).

[103] Carvalho (2015, p. 123). Pereira (2015).

[104] Carvalho (2015, p. 124).

[105] Carvalho (2015, p. 124). Peterson (2005, p. 10).

[106] Carvalho (2015, p. 160-161).

[107] Carvalho (2015, p. 161).

[108] Legrand (2012, p. 1

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and patterns beyond individual cases.[109] Intelligence-led policing uses routine police information to support prevention and deterrence as well as investigation, requiring systems that organize information for efficient, lawful access.[110] Intelligence is central to assessing terrorist threats and vulnerabilities and can help authorities disrupt groups before an attack occurs.[111] Effective counterterrorism requires early-warning mechanisms and reliable information-sharing arrangements that allow competent bodies to compare and analyse information within their respective legal mandates.[112]

2.4.4. Artificial Intelligence

Collective-intelligence systems have been proposed to improve understanding of complex transnational threats and support more effective responses. Their value depends on institutional cooperation and responsible use.[113] Artificial intelligence refers broadly to computational systems that perform tasks associated with human reasoning or decision-making, using models that perceive inputs and generate outputs toward specified objectives.[114] Machine learning and data mining can identify statistical patterns in historical data and apply them to new information. These correlations are predictive signals, not explanations or certainties.[115] AI tools can analyse large datasets through machine learning, sentiment and content analysis, and natural-language processing. Such capabilities may assist intelligence-led policing, subject to legal safeguards and meaningful human oversight.[116] Artificial neural networks use interconnected computational units whose weights are adjusted during learning. Their outputs require evaluation for reliability, bias and relevance to the decision at hand.[117]

3. Legal Limits, Fundamental Rights and Preventive Security

Preventive security is subject to legal limits that cannot be treated as merely operational constraints. Anticipating risk is not equivalent to proving that a crime has been committed, nor does identifying a vulnerability, by itself, authorize intrusive measures. Preventive action

[109] Legrand (2012, p. 3-4).

[110] Newman (2008, p. 70

[111] Romana (2005, p. 36).

[112] Romana (2005, p. 37-38).

[113] Zang (2014).

[114] Mukhopadhyay (2011, p. 4).

[115] Ramos-Martín & Barreneche (2020, p. 2).

[116] Singh & George (2021, p. 349); Ramos-Martín & Barreneche (2020, p. 4).

[117] Kaur (2016, p. 20).

must remain subject to legality, necessity, suitability and proportionality, as well as to safeguards concerning privacy, data protection, freedom of expression and judicial oversight.

At European level, Directive (EU) 2016/680 establishes specific requirements for the processing of personal data by competent authorities for the prevention, detection, investigation and prosecution of criminal offences. In Portugal, it was transposed by Law No. 59/2019 of 8 August; that law excludes processing related to national security, so the applicable regime must be identified by reference to the purpose and institutional context of processing.[118] The case law of the Court of Justice of the European Union and the European Court of Human Rights has likewise reinforced the requirement for effective safeguards in relation to intrusive surveillance and data-processing practices. The national framework has also evolved: Law No. 33/2026 of 21 July amended the Counter-Terrorism Law (Law No. 52/2003), while Decree-Law No. 125/2025 of 4 December approved the current legal regime for cybersecurity, transposing Directive (EU) 2022/2555.[119] These requirements are particularly relevant when predictive-analytics systems, data mining or artificial intelligence are used. The technical capacity to identify statistical correlations cannot transform probabilities into legal certainties. Risks of biased data, reproduction of pre-existing discrimination, algorithmic opacity and the use of indirect indicators as substitutes for grounded suspicion require qualified human oversight, auditability and clear accountability criteria. Regulation (EU) 2024/1689, the Artificial Intelligence Act, reinforces these concerns by subjecting certain uses, including specified law-enforcement uses, to specific requirements and, in defined circumstances, high-risk regimes, requiring particular attention to accuracy, robustness, transparency, documentation and human oversight. In the counter-terrorism field, the need to prevent attacks does not eliminate the obligation to distinguish threat, risk, intent, preparation and evidence, nor does it dispense with the need to provide reasons for and review the measures adopted.

4. Conclusions

Preventing terrorism and cyberterrorism within a National Security Strategy requires an integrated approach capable of articulating intelligence production, early warning, cooperation among security forces and services, criminal police bodies, the Public Prosecution Service, cybersecurity and cyber-defence structures, and other relevant public and private actors, always within their respective legal competences.

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[118] Law No. 59/2019, of August 8, which transposes Directive (EU) 2016/680 into the Portuguese legal system; Article 2(3) excludes the processing of personal data related to national security.

[119] Law No. 33/2026, of July 21st, which amends Law No. 52/2003, of August 22nd (Combating Terrorism Law); Decree-Law No. 125/2025, of December 4, which approves the legal regime for cybersecurity and transposes Directive (EU) 2022/2555.

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Such integration does not, however, eliminate the functional boundaries between the different security systems. Intelligence has an essentially prospective and anticipatory function; criminal investigation seeks to establish facts, identify offenders and obtain evidence; cybersecurity and cyber-defence, according to their respective legal and institutional frameworks, protect and enhance the resilience of systems and infrastructures; and judicial decision-making retains its constitutional autonomy. Cooperation must therefore coexist with a clear differentiation of competences.

Accordingly, the preventive use of analytical technologies should be assessed through a cumulative sequence: whether the capability is technically and operationally relevant; whether there is a sufficient legal basis for its use; which institution is competent to act; what evidential status the resulting information has; whether the contemplated measure is necessary, suitable and proportionate; and whether the decision remains subject to meaningful institutional and legal accountability.

In the field of terrorism and cyberterrorism, this distinction is particularly relevant. Not every cyberattack constitutes cyberterrorism, just as the use of digital means by a terrorist organisation does not automatically transform every digital activity into an act of cyberterrorism. Legal classification depends on the material and subjective elements required by the applicable legal regime. Prevention must also distinguish threat, risk, intent, preparation and evidence, avoiding the conversion of prospective assessments into individual imputations without additional grounds.

The use of predictive policing, intelligence-led policing and artificial intelligence may strengthen analytical and anticipatory capacity, but it does not eliminate uncertainty or replace legally responsible human decision-making. Probabilistic risk estimates do not amount to criminal evidence, and statistical correlations do not, in themselves, establish individual authorship. The use of these tools must comply with legality, necessity, suitability and proportionality, as well as applicable requirements concerning data protection, human oversight, transparency and accountability.

At institutional level, effective prevention depends on coherence among national instruments relating to internal security, national defence, intelligence, cybersecurity and cyber-defence. The current legal framework reinforces the need for coordination and resilience without eliminating the functional autonomy of the entities involved. The objective should not be to concentrate all preventive capabilities in a single entity, but to build cooperation mechanisms capable of sharing relevant information, reducing vulnerabilities and ensuring proportionate responses to different categories of threat.

Effective prevention integrates information and action while preserving legality, proportionality, evidence and accountability. A strategy should improve cooperation without treating intelligence assessments as proof or allowing technology to determine coercive decisions.

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